

LAM09K20364 LAM09K20364

County: los-angeles

Division: Civil Law and Motion

Department: 25

Hearing date: 2026-07-14

Source URL: https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=SS%20%2C25%2C07%2F14%2F2026

Source SHA-256: e8354741a6881c44b0e228393f94d3b27efd5c0895a7dfc5fda491e72d83e5c2

Case Number: LAM09K20364 Hearing Date: July 14, 2026 Dept: 25

HEARING DATE: Tues., July 14, 2026 JUDGE /DEPT: Eisenman/25

CASE NAME: Robertson's

Ready Mix, Ltd. v. Mitchell

COMP. FILED: 10-20-09

CASE NUMBER: LAM09K20364

NOTICE: OK

PROCEEDINGS: MOTION

TO SET ASIDE VOID JUDGMENT

MOVING PARTY: Defendant Iris Mitchell

RESP. PARTY: Plaintiff Robertson's Ready Mix, Ltd.

MOTION TO

SET ASIDE DEFAULT JUDGMENT

(Code Civ. Proc., §§ 473(d))

TENTATIVE RULING:

The Court

DENIES Iris Mitchell's motion to set aside the default and default judgment entered against her.

The Judicial Assistant is to give notice.

SERVICE:

☒ Proof of

Service Timely Filed (CRC, rule 3.1300) OK

☒ Correct Address

(CCP §§ 1013, 1013a) OK

☒ 16/21 Court

Days Lapsed (CCP §§ 12c, 1005(b)) OK

OPPOSITION: Filed

June 30, 2026 ☐

Late ☐ None

REPLY: None

filed as of July 8, 2026 ☐

Late ☒ None

ANALYSIS:

Robertson's

Ready Mix, Ltd. got a default judgment against Iris Mitchell in May 2010. Mitchell now moves to have the judgment and underlying default vacated under Code of Civil Procedure section 473, subdivision (d), because the judgment is void due to lack of proper service and lack of personal jurisdiction.

In

December 2009, a registered California process server personally served Mitchell with copies of the summons, complaint, and various other case-opening materials at "718 W. Athens Blvd, Los Angeles, CA 90044." (See Code Civ. Proc., § 415.10.) The process server's declaration is prima facie evidence that Robertson's served Mitchell. (Evid. Code, § 647; Lee v. Yan (2025) 115 Cal.App.5th 975, 978.)

Mitchell first argues that she was not served, did not

live at the address where service was made, and that service must be made at

her actual dwelling house or usual place of abode. The personal service statute, Code of Civil

Procedure section 415.10, does not require personal service to be made at any specific location. A location requirement does appear in the substitute service statute, Code of Civil Procedure section 415.20, but Mitchell wasn't served by substitute service. In any event, the Court notes that the address where Robertson's served Mitchell is the same address that Mitchell put in the caption of her filings.

Mitchell then argues that the proof of service is defective because it does not include a physical description of the person served. There is no requirement that proof of personal service include a description of the person served. Code of Civil Procedure section 417.10, subdivision (a) requires the "time, place, and manner of service" with the "name of the person to whom a copy of the summons and of the complaint were delivered," and if appropriate, the person's title or capacity. Robertson's proof of personal service complies with section 417.10.

In addition to the fact that Mitchell has therefore failed to rebut the presumption that she was properly served, the default judgment against her was entered 16 years ago.

The California Supreme Court's recent decision in California Capital Ins. Co. v. Hoehn (2024) 17 Cal.5th 207 (Hoehn) left open the question whether a defendant must demonstrate diligence to set aside a void default judgment under Code of Civil Procedure section 473, subdivision (d). The defendant in Hoehn "unquestionably showed reasonable diligence by challenging the default judgment within three months after learning of it." (Hoehn, p. 225, fn. 11.) Here, Mitchell offers nothing to explain the 16-year gap between the entry of judgment and her motion to set it aside, other than to say she "first learned of this case after the default judgment had already been entered." That is not a showing of diligence.

The Court DENIES Mitchell's motion to set aside the default and default judgment entered against her.

The Judicial Assistant is to give notice.